

SENATE BILL 2162

By Briggs

AN ACT to amend Tennessee Code Annotated, Title 8,
relative to executive sessions for consideration of
employment by a governing body.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 8-44-102, is amended by adding the
following subsection (e):

(e) Executive sessions for consideration of employment of director-level staff by
a governing body:

(1) An executive session may be conducted by a governing body to
interview applicants for employment as director-level staff of the body. Public
notice of such an executive session is not required;

(2) Decisions may not be made in the executive session but must be
deliberated and voted on in an open, publicly noticed meeting;

(3) The minutes of such session shall disclose all persons who were in
attendance except job applicants who attend for the purpose of being interviewed
by said body;

(4) Attendance is limited to members of said body, relevant staff invited
by the body, and job applicants;

(5) Further, to review and consider the contents of an application for
employment or appointment by said body, a job applicant may request that the
applicant's application remain confidential; and

(6) Upon being selected for employment or appointment, the selected
applicant's interview, if recorded, and application may be subject to a public

records request pursuant to § 10-7-503. Notwithstanding § 10-7-503, the application and interview of applicants not selected must remain confidential upon request.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.